



File No.: EXP202307637

RESOLUTION OF

PROCEEDING OF WARNING

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on April 18, 2023. The complaint is directed against whom they identify as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows: The claimant indicates that the respondent has installed a new camera in their home that is oriented towards the access to the claimant's home, with the camera being ineffectively signposted as it has a sign indicating a video surveillance area without including a reference to the data controller and to which address to direct inquiries for the exercise of rights. Images of the camera are provided (Documentary Annex I).

SECOND: Upon consulting the database of this agency, it is noted that there is a prior procedure associated with the respondent with number (...), in which the following Resolution was issued: WARNING (...) to Ms. B.B.B. as the owner of the video surveillance system installed in the dwelling located at (...), in accordance with the provisions of Article 45.6 of Organic Law 15/1999, of December 13, on the Protection of Personal Data, in relation to the complaint for infringement of Article 6.1 of the LOPD, classified as serious under Article 44.3.b) of the aforementioned Organic Law.

THIRD: This agency proceeds in accordance with the provisions of Law 39/2015 (October 30) LPAC to forward the complaint made, being the subject of notification at the address indicated by the claimant on July 17, 2023, without any response having been received in this regard.

FOURTH: On July 18, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FIFTH: On February 1, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Articles 5 and 13 of the GDPR, classified under Article 83.5 of the GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

SIXTH: Upon consulting the database of this Agency, it is confirmed by the Official Postal Service that there was a double delivery attempt at the indicated address of the Initiation Agreement associated with PS/00030/2023, leaving a which has not been collected at the office, resulting in .

SEVENTH: On April 18, 2024, collaboration is requested from the Security Forces and Corps of the locality, so that they may clarify to this agency some aspects related to the presence of cameras in the area.

EIGHTH: On June 17, 2024, a report is received from the Civil Guard (Pontevedra Command), which, upon being dispatched to the scene, confirms the following:

- The video cameras are managed by the relatives of those identified as responsible in the complaint, namely, C.C.C. and B.B.B., both individuals of very advanced age.
- The location where all the devices are installed is configured on an access road to several homes and, specifically, to the one occupied by the relatives of the complainant and to the one occupied by the respondents.

Regardless of its configuration or appearance, both the relatives of the complainant and those of the respondents voluntarily acknowledge to the Civil Guard of this Unit that the ownership of the entire

road is private. Thus, the first section (dirt road) is owned by a third neighbor who resides in another dwelling, and the second section, where the devices are located, is the exclusive property of the respondents.

In the portal corresponding to the dwelling of the respondents, a sign announcing the video surveillance area can be seen.

Upon viewing and according to the arrangement of the cameras at that moment, it has been observed that the images captured by the three video cameras only reach the section of the road owned by the respondents. It has also been verified that an opacity layer (black background wall) has been installed over the entire access portal to the dwelling of the complainant's relatives (...).

In light of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

First. The facts arise from the complaint dated April 18, 2023, through which the installation of a camera, which is considered incorrectly signposted, is reported.

An image of the camera in its current location is provided (Documentary Evidence 1 Annex I).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/7

Second. It is recorded that the main responsible party is B.B.B., with NIF ***NIF.1, who manages the system.

Third. It is recorded by the acting Force deployed to the scene that various devices capable of capturing images have been installed in an area shared between the parties, who maintain poor relations.

Fourth. The presence of an informational sign is recorded; however, in the attached report sent by the Civil Guard (Pontevedra Command), it cannot be determined whether it is complete in the essential aspects in accordance with data protection regulations.

Fifth. It has not been confirmed that any processing has been carried out outside the cases permitted by law, nor that the parties are unaware of how to exercise their rights under the current data protection regulations.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, the complaint dated 04/18/23 is examined, which presents the following main fact:

"presence of a video surveillance camera that may be directed towards the claimant's property" (page no. 1).

It also provides a photograph (without date and time) of the access door where an informational sign is observed, which is not duly completed in its essential sections (e.g., responsible party, purpose, etc.).

Article 5.1 c) of the GDPR states the following: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informational sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be directed towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

It is worth remembering that even in the case of a “dummy” camera, it must be preferably directed towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by it under the belief that they are subject to permanent recording.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the responsible party in such a way that they do not affect areas of third parties who may feel intimidated by them, impacting their free transit area or private space.

III

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time of obtaining such data:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of the transfers referred to in the...

5/7

Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to adequate or appropriate safeguards and to the means to obtain a copy of these or to the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability;
- c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the

significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any other relevant information pursuant to paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

Article 22, paragraph 4 of the LOPDGDD states:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informative device."

IV

The principle of presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the claim.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/7

facts that motivate the accusation or the involvement of the alleged offender in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must prevail without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their own positions. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal."

The presumption of innocence prevails without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCO 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their own positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCO Auto 3-12-81).

V

Conclusions

Having examined the evidence in this procedure, taking into account the deployment of the State Security Forces to the scene of the events, confirming the presence of an informational sign at the door of the residence; as well as the fact that the parties are neighbors whose data are perfectly known by both parties in case they wish to exercise their rights within the framework of the current regulations, no infringement as described is found.

It has been verified by the acting authority that the installed devices do not affect private areas, being the transit path shared by the parties, who maintain various disagreements, as reflected in the Report sent to this agency.

The requirements that must be met in the case of installing video surveillance cameras are clearly explained in the Video Surveillance Guide of this Agency, on the website www.aepd.es; the parties must limit the installation of these to what is necessary for the strict control of access to their private residences.

The information that must be provided in any informational sign placed by the parties must indicate

that it is a , the indication of the effective responsible for the processing, as well as where to exercise their rights (e.g., physical address or email address, by way of example).

Both parties are reminded of the significance of the rights at stake, and they must avoid the instrumentalization of this or any other agency in matters of or resolving them in the appropriate judicial instances.

In the event of further action by this Agency, the initial lack of cooperation with this body or the disregard for the extensive recommendations and reminders presented will be taken into account for the imposition of monetary fines, which is communicated to them for the appropriate legal effects. Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of this procedure as the infringement described has not been established within the framework of the current data protection regulations.

SECOND: TO NOTIFY this resolution to Ms. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1403-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es